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Case Number: 25STCV19184 Hearing Date: July 21, 2026 Dept: 735

Grimberg v. Hillel Hebrew Academy, et al.

Defendants' Motion to Compel Arbitration

BACKGROUND

This is an employment action. On July 1, 2025, Plaintiff Ayala Grimberg filed a complaint against Defendants Hillel Hebrew Academy, Eitan Sender, Daniel Silverman and Malka Katzin, asserting 14 causes of action for FEHA violations, Labor Code violations and wrongful termination.

All evidentiary objections are preserved.

DISCUSSION

Existence of Agreement to Arbitrate

Defendants move to compel arbitration based on the Mutual Agreement to Arbitrate executed by Plaintiff on October 31, 2019. The agreement requires arbitration of

"all disputes, claims, or controversies of any kind or nature, including but not limited to those arising from, related to, or connected with Employee seeking an employment relationship, Employee's employment with Hillel at any time during her/his employment, and/or termination of Employee's employment with Hillel, that either Employee may have against Hillel (and/or its past and present employees, independent contractors, agents, officers, directors, board members, successor, assigns, benefit plans and sponsors, fiduciaries, administrators or insurers) or that Hillel may have against Employee."

(Silverman Decl. ¶ 5, Exh. A.)

This action arises from Plaintiff's employment relationship with Defendants. Defendants have met their burden to establish the existence of an agreement to arbitrate. The burden shifts to Plaintiff to establish any defenses to enforcement.

Enforceability

Plaintiff asserts that the agreement should not be enforced because it is unconscionable. Unconscionability generally includes the absence of meaningful choice on the part of one of the parties together with contract terms that unreasonably favor the other party. As the party asserting unconscionability, Plaintiff has the burden of proving both procedural and substantive unconscionability. Courts analyze the unconscionability standard in Civil Code section 1670.5 as invoking elements of procedural and substantive unconscionability.

Procedural unconscionability focuses on whether there is 'oppression' arising from an inequality of bargaining power or 'surprise' arising from buried terms in a complex printed form. The substantive element addresses the existence of overly harsh or one-sided terms. An agreement to arbitrate is unenforceable only if both the procedural and substantive elements are satisfied. The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.

Plaintiff argues that the agreement is procedurally unconscionable because it is an adhesion contract and because it was not translated into Hebrew. Plaintiff represents, and Defendant do not dispute, that execution of the agreement was a requirement of continued employment. Plaintiff does not state that she requested a Hebrew translation that was denied. This evidences a low degree of procedural unconscionability. Accordingly, the level of substantive unconscionability must be high.

Plaintiff asserts that the agreement is substantively unconscionable because it covers claims unrelated to employment and claims against third parties including Defendants' fiduciaries, administrators, and insurers. The agreement states that it applies to any claims Plaintiff may have against Defendants and any claims Defendants may have against Plaintiff. The agreement also states that Defendant Hillel executes the agreement on behalf of itself and all of its past, present, and future affiliated or related entities. Though Courts have held that broad arbitration provisions that do not limit arbitrable claims may be substantively unconscionable, any degree of substantive unconscionability here is low because the arbitrable claims apply to both Plaintiff as employee and Defendants as employer. (See Stoker v. Blue Origin, LLC (2026) 120 Cal.App.5th 91.) The inclusion of Hillel's employees, agents, officers, directors, board members, benefit plans, fiduciaries, administrators, and insurers does not render the agreement one-sided; it reflects the practical reality that employment-related claims are often asserted against employer-related individuals or entities. The agreement is enforceable.

Plaintiff also argues that Defendants have waived the right to arbitrate. The Court disagrees. After reviewing the First Amended Complaint, Defendants wrote to Plaintiff's counsel, enclosed the Arbitration Agreement, demanded arbitration, and asked Plaintiff to stipulate to stay this action and proceed in arbitration. Thereafter, the parties met and conferred, and Plaintiff's counsel confirmed Plaintiff would not stipulate to arbitration and would oppose a motion to compel. Defendants then filed their Motion to Compel Arbitration and for Stay of Proceedings. Defendants have not waived their right to arbitrate.

Finally, Plaintiff asserts that the agreement is superseded by the 2019-2020 Employment Contract. As stated by Plaintiff, however, the Employment Contract acknowledges the existence of the arbitration policy.

CONCLUSION

The Court grants Defendants' motion to compel arbitration.

The action is stayed.

Defendants to give notice.

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Plaintiff’s (5) Motions to Compel Further
Responses to Discovery from Defendant

As the Court has granted Defendants’ motion
to compel arbitration and stayed the action, Plaintiff’s motions to compel
further responses to discovery from Defendant are off calendar.